

		fact. This conclusion, however, follows only if there is no credible explanation for the supposed inconsistency. The doctrine does not apply when a reasonable explanation resolves the supposed discrepancy.” (<i>Tiffany Builders, LLC v. Delrahim</i> (2023) 97 Cal.App.5th 536, 547.) At this stage the Court finds the Finzen declaration sufficiently reliable to demonstrate a triable issue of fact. Defendant’s RFA answer stated she altered pre-existing bonding on Plaintiff’s teeth. (Plaintiff’s Ex. 15.) While Defendant does not directly contradict this admission in her own declaration, she presents evidence that there was no visible change or damage to the bonding and contends she only told Plaintiff “I have to take a little bit of the bonding away.” Defendant declares she noted a chipped edge of bonding, asked Plaintiff if she could repair it, and Plaintiff declined. (¶ 10.) It was included in Defendant’s proposed treatment plan. (¶ 16.) Defendant has sufficiently explained the discrepancy between the RFA responses and declarations of Defendant and Dr. Finzen for purposes of this motion. Moreover, although Plaintiff has not had the opportunity to take Dr. Finzen’s declaration she fails to show it is likely that the deposition would resolve all questions of fact raised in his declaration. Defendants have demonstrated triable issues of material fact as to this claim, including whether Plaintiff’s alleged damages were due to a “substantially different treatment” than Plaintiff consented to versus a negligently-performed treatment, and causation and the extent of damage to Plaintiff’s teeth. Therefore, the motion is denied as to Issues 6 and 7.
17	24-01397948 <i>Sanchez vs. Namhy</i>	Motion for Discovery Plaintiff Cristina Martinez Sanchez’s motion to compel further responses to requests for production of documents, set one, from Defendant Vishramal Gunasekara, as Trustee of the Vishramal & Manil Gunasekara Family Trust, is CONTINUED to _____. <i>All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed.</i> As an initial matter, the Court finds the motion is timely. The parties agreed to extend the motion deadline to 11/23/25, which was a Sunday. (McElfish Decl., Ex. D.) When the last day to perform an act falls on a Sunday, “the time limit is extended to the next court day closer to trial.” (Code Civ. Proc., § 2016.060.) Plaintiff’s counsel acknowledged this consequence in an email on 11/21/25. (See McElfish Decl., Ex. D.) The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of

		resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) Plaintiff's initial meet and confer letter failed to identify which responses Plaintiff deemed were deficient. Thereafter, Defendant failed to respond to Plaintiff's requests to meet and confer via telephone. The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i>. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT, no longer than five pages</i>, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The parties are strongly encouraged to resolve this dispute cooperatively if possible. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
18	25-01458075 <i>Thayer vs. TFSC, Inc.</i>	Motion for Leave to File Amended Complaint Plaintiff Amber Thayer's motion for leave to file a first amended complaint is DENIED. Procedural issues Plaintiff has not filed a proof of service showing the reply was served on Defendant TFSC, Inc. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As such, the Court declines to consider the reply. Defendant's objections to Plaintiff's evidence (ROA 94) Defendant objects to portions of the declaration of Justin Hewgill. The Court OVERRULES Defendant's objections. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "Generally,